

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ JAN 20 2010 ★

ROBERT MCMILLAN,

Plaintiffs,

BROOKLYN OFFICE
COMPLAINT

-against-

CV 10-0227

THE CITY OF NEW YORK, DET. JAMES RIVERA,
Shield No. 5027, Individually and in his Official Capacity
and P.O.'s "JOHN DOE" #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as
the true names are presently unknown),

JURY TRIAL DEMANDED

ECF CASE
WEINSTEIN, J.

Defendants.

REYES, M.J

Plaintiff ROBERT MCMILLAN, by his attorneys, Cohen & Fitch LLP,
complaining of the defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages
and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of
their civil rights, as said rights are secured by said statutes and the Constitutions of the
State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988,
and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States
Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331 and 1343.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff ROBERT MCMILLAN is an African American male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

9. That at all times hereinafter mentioned the individually named defendants DET. JAMES RIVERA, and P.O.'s "JOHN DOE" #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with

the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

13. On or about March 10, 2009, at approximately 7:45 p.m., plaintiff ROBERT MCMILLAN was lawfully present as an overnight guest in the premises known as 1540 Sterling Avenue, in the County of Kings, State of New York.

14. At the aforesaid time and place, defendant police officers broke down the door of 1540 Sterling Avenue, Brooklyn, New York.

15. Upon information and belief, the police officers did not enter either apartment pursuant to a valid search warrant.

16. Upon information and belief, the police officers did not provide a copy of said warrant to plaintiff upon repeated requests.

17. Upon information and belief, the police officers, if they did possess a warrant, did not enter in a manner or at a time authorized in the warrant.

18. Upon information and belief, plaintiff was not listed or described as a suspect or target on any application for any warrant.

19. Defendant police officers then aggressively entered the apartment with their guns drawn, terrorizing plaintiff and everyone else inside.

20. Plaintiff ROBERT MCMILLAN was inside the bedroom of the apartment in his underwear when defendants kicked down the apartment door.

21. After entering the apartment, defendant officers kicked the bedroom door open where plaintiff ROBERT MCMILLAN was sitting on the bed, and entered with their guns drawn, pointed at his head.

22. Thereafter, defendants' aggressively handcuffed plaintiff ROBERT MCMILLAN's arms tightly behind his back and dragged him from the bedroom into the living room.

23. Plaintiff repeatedly requested that the officers provide him with a copy of the search warrant and the reason he was being handcuffed, to which the officers offered no response.

24. While plaintiff was in custody, defendant police officers searched the entire apartment, which recovered no contraband or evidence of criminal activity of any kind.

25. Notwithstanding the lack of any evidence or contraband found on plaintiff's person or in his custody and control, defendants arrested plaintiff and charged him with Criminal Possession of a Controlled Substance in the Seventh Degree.

26. Plaintiff never possessed or controlled any contraband or controlled substance.

27. In connection with plaintiff's arrests, defendants filled out false and misleading police reports and forwarded said reports to prosecutors in the District Attorney's Office.

28. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

29. As a result of his unlawful arrest, plaintiff ROBERT MCMILLAN spent approximately seventy-two (72) hours in jail before he was released from custody.

30. As a result of his unlawful arrest, plaintiff ROBERT MCMILLAN spent approximately nine (9) months making numerous court appearances before all of the charges were dismissed on December 10, 2009.

31. As a result of the foregoing, plaintiff ROBERT MCMILLAN sustained, *inter alia*, bodily injuries, mental anguish, shock, fright, apprehension, embarrassment, and humiliation, and deprivation of their constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "31" with the same force and effect as if fully set forth herein.

33. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

34. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

37. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "37" with the same force and effect as if fully set forth herein.

39. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

40. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "40" with the same force and effect as if fully set forth herein.

42. Defendants misrepresented and falsified evidence before the District Attorney.

43. Defendants did not make a complete and full statement of facts to the District Attorney.

44. Defendants withheld exculpatory evidence from the District Attorney.

45. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff ROBERT MCMILLAN.

46. Defendants lacked probable cause to initiate criminal proceedings against plaintiff ROBERT MCMILLAN.

47. Defendants acted with malice in initiating criminal proceedings against plaintiff ROBERT MCMILLAN.

48. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff ROBERT MCMILLAN.

49. Defendants lacked probable cause to continue criminal proceedings against plaintiff ROBERT MCMILLAN.

50. Defendants acted with malice in continuing criminal proceedings against plaintiff ROBERT MCMILLAN.

51. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

52. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff ROBERT MCMILLAN's favor on or about December 10, 2009, when all charges against him were dismissed.

53. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "53" with the same force and effect as if fully set forth herein.

55. Defendants issued legal process to place plaintiff ROBERT MCMILLAN under arrest.

56. Defendants arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

57. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

58. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety and was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF
UNLAWFUL SEARCH AND ENTRY UNDER 42 U.S.C. § 1983

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "58" with the same force and effect as if fully set forth herein.

60. As a result of the aforesaid conduct by defendant, the location where plaintiff was staying was illegally and improperly entered without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

61. As a result of the aforesaid conduct by the defendants, the location where plaintiff was staying was entered illegally at time not prescribed in the warrant, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

62. As a result of the aforesaid conduct by the defendants, plaintiff was not provided a copy of said warrant upon his request, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

63. As a result of the aforesaid conduct by defendants, the location where plaintiff was staying was illegally and improperly searched without any warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SIXTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “63” with the same force and effect as if fully set forth herein.

65. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or

rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

66. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, a) obtaining no-knock warrants by misrepresenting to judges the reliability of information received from confidential informants, b) entering the premises at a time not authorized in the warrant, c) arresting any and all individuals in said premises regardless of probable cause, d) refusing to present the search warrant to individuals upon request, and e) utilizing excessive force in executing such warrants.

67. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiffs.

68. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

69. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

70. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested and detained, and subjected to excessive Force.

71. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

72. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from malicious abuse of process;
- D. Not to have excessive force imposed upon them;
- E. To be free from unlawful search;
- F. Not to have summary punishment imposed upon them; and
- G. To receive equal protection under the law.

73. As a result of the foregoing, plaintiff is entitled to compensatory damages in the sum of one million dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of two million dollars (\$2,000,000.00).

WHEREFORE, ROBERT MCMILLAN, demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages and two million dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
January 12, 2010

BY: 
JOSHUA P. FITCH (JF/2813)
COHEN & FITCH LLP
Attorneys for Plaintiff
225 Broadway, Suite 2700

New York, N.Y. 10007
(212) 374-9115